

Court denied Plaintiff's ex parte application to advance the hearing on the motion to strike for lack of exigency.

Trial is not yet set.

ANALYSIS

Here, Plaintiff's motion is based on the initial Cross-Complaint's second cause of action for common count. Defendant contends that the motion is moot because it filed a First Amended Cross-Complaint ("FACC") that removed its second cause of action for common count, which is the cause of action upon which Plaintiff's motion is based.

The issue is that Plaintiff has moved to strike the FACC, arguing that it was untimely filed without leave of Court. Plaintiff's motion to strike is set to be heard on October 19, 2026. The Court denied Plaintiff's ex parte application to advance the hearing on the motion to strike due to lack of exigency.

However, the Court must first determine whether the FACC was properly filed, which requires the Court to hear the motion to strike before the instant motion. If the Court determines that the FACC was properly filed, then the FACC moots the current motion, and the Court need not proceed on its merits. **Accordingly, the Court continues the hearing on this motion to October 19, 2026, so it can be considered when the Court determines the validity of the FACC.**

2.

CASE #	CASE NAME	HEARING NAME
CVRI2506010	LIU VS MASCOT INTERNATIONAL LOGISTICS INC.	MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S FIRST SET OF REQUESTS FOR ADMISSION, SET ONE, NOS 1, 3, 4, 5, 6, 7, 8, AND 9

Tentative Ruling:

Moving party: Plaintiff Cong Liu, pro per

Responding party: Defendant Mascot International Logistics

Plaintiff Cong Liu ("Plaintiff") alleges she purchased 27 display cabinets ("Cargo") using her own funds for a commercial customer and retained ownership and bore all economic risk associated with the Cargo. The Cargo was shipped from China to the United States with House Bill of Lading No. SZOH24010453. After the Cargo arrived in the United States, Defendant Mascot International Logistics, Inc. ("Defendant") took custody of the Cargo and refused to release it, despite Plaintiff's repeated demands. Plaintiff alleges that Defendant falsely misrepresented that Cargo was detained due to various carrier lien and warehouse lien to coerce Plaintiff into paying additional charges.

The operative Complaint, filed November 18, 2025, asserts causes of action for (1) Conversion; (2) Trespass to Chattels; (3) Intentional Interference with Possessory Rights; and (4) Fraud and Deceit. Prior to filing the instant action, Plaintiff filed a small claims case against Defendant regarding the same Cargo on March 6, 2024, Case No. SCCO2400217, which was dismissed on June 7, 2024. On March 18, 2024, Plaintiff filed a limited jurisdiction case, *Liu v. Mascot International Logistics, Inc.*, Case No.

CVCO2401737 (“LJ Action”), which was voluntarily dismissed on November 18, 2025, the same date the instant action was filed. On April 28, 2026, the Court stayed all proceedings in the present case pending a ruling on Defendant’s Motion to Vacate Dismissal in the LJ Action. On May 20, 2026, the Court denied Defendant’s motion to vacate dismissal.

Plaintiff served Defendant with Plaintiff’s First Set of Requests for Admission (“RFAs”), Set One, on February 10, 2026. (Plaintiff Decl., ¶4, Exh. 1.) Defendant served its verified responses on March 17, 2026. (*Id.* at ¶6, Exh. 2.)

Plaintiff now moves to compel further verified responses to Plaintiff’s RFA Nos. 1 and 3 through 9. Plaintiff contends the remaining responses are evasive and incomplete, and good cause exists for further responses. Plaintiff requests monetary sanctions against Defendant in the amount of \$2,500.00.

In opposition, Defendant points out Plaintiff failed to meet and confer given Plaintiff served the instant motion only hours after Plaintiff sent her meet and confer email. Defendant maintains its responses to Plaintiff’s RFAs are Code-compliant. Defendant requests monetary sanctions against Plaintiff in the amount of \$2,600.00.

In reply, Plaintiff repeats arguments set forth in moving papers.

The Court continued the hearing and ordered the parties to meet and confer. Per the joint separate statement, the parties were unable to resolve their issues via videoconference.

Trial is not currently set.

ANALYSIS

I. Oversized Filing

California Rules of Court, rule 3.1113(d) limits the opening and responding motion to 15 pages exclusive of the caption page, the notice of motion and motion, exhibits, declarations, attachments, the table of contents, the table of authorities or the proof of service. Rule 3.1113(e) requires a party to apply to the court ex parte at least 24 hours before the memorandum is due for permission to file a longer memorandum and state the reasons why the argument cannot be made within the stated limit. Rule 3.1113(f) requires any memorandum that exceeds 10 pages must include a table of contents and a table of authorities, and any memorandum that exceeds 15 pages must also include an opening summary of argument.

Here, Plaintiff fails to include a table of contents and table of authorities as required under Rule 3.1113(f). Although acting in pro per, a pro per litigant is held to the same standards as attorneys. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536.) Furthermore, as a self-represented litigant, Plaintiff is entitled to the same but no greater consideration than an attorney or represented litigant (*In re Marriage of Falcone & Fyke* (2008) 164 Cal.App.4th 814, 830; see also *Tanguilig v. Valdez* (2019) 36 Cal.App.5th 514, 520), and must comply with the rules of court to the same extent as an attorney. (*County of Orange v. Smith* (2005) 132 Cal.App.4th 1434, 1444.) The Court **ADMONISHES** Plaintiff for the future.

II. Meet and Confer

Before filing a motion to compel a further response, the moving party must engage in a reasonable and good faith attempt to resolve informally each issue set forth in the

motion and must file an appropriate declaration with the motion. (Code Civ. Proc. §§ 2030.300, subd. (b), 2031.310, subd. (b)(2), and 2016.040.) A meet and confer declaration “shall state facts showing a reasonable and good faith attempt, **either in person, by telephone, or by videoconference**, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a), emphasis added.) The meet and confer requirement “is designed to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order.” (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1435.) It requires “a serious effort at negotiation and informal resolution,” including attempts by counsel “to talk the matter over, compare their views, consult, and deliberate.” (*Id.* at 1438-1439.) It requires a serious attempt by the moving party to informally resolve each issue with the responses. (*Clemente v. Alegre* (2009) 177 Cal.App.4th 1277, 1293.)

Here, Plaintiff sent an email to meet and confer regarding Defendant’s deficient responses to Plaintiff’s RFAs on May 1, 2026. (Plaintiff Decl., ¶18, Exh. 5.) This is on the same day Plaintiff filed the instant motion. This is NOT a reasonable and good faith attempt to resolve issues informally and is not Code-compliant pursuant to Code of Civil Procedure section 2016.040, subd. (a), regardless of Plaintiff’s claim to file a timely motion. The motion is noted as timely pursuant to Code of Civil Procedure sections 2033.290, subdivision (c), 1010.6, subdivision (a)(4), 1013, and 12a, subdivision (a).

UPDATED

The Court continued the motion and ordered the parties to file a joint separate statement. Per the joint separate statement, the parties met and conferred via videoconference. Accordingly, Plaintiff ultimately complied with the meet and confer requirements.

III. Merits

If a party has been served with responses to its RFAs, the party may move for an order compelling further responses to RFAs on the grounds that: (1) an answer to a particular request is evasive or incomplete or (2) an objection to a particular request is without merit or too general. (C.C.P., § 2033.290 (a).)

The same rules applying to motions to compel further responses to interrogatories apply to requests for admissions. (Weil & Brown, *California Practice Guide: Civil Procedure Before Trial* § 8:1382 (Rutter Group 2025).) Accordingly, upon a timely motion to compel further responses, the responding party has the burden to justify any objection or failure to fully respond. (*Fairmont Ins. Co. v. Superior Court (Stendell)* (2000) 22 Cal.4th 245, 255 (applying to interrogatories).) A response to a request for admission must either include an admission, denial, lack of knowledge or objection. (C.C.P. §§ 2033.220 and 2033.230.) If a party is unable to admit or deny, it shall state that a reasonable inquiry has been made. (C.C.P. § 2033.220(c).) For the latter, a “party has a duty to make a reasonable investigation of the facts before answering items which do not fall within his personal knowledge.” (*Bloxham v. Saldinger* (2014) 228 Cal.App.4th 729, 751-752.) This is because “requests for admissions are more closely akin to summary adjudication procedures than to orthodox discovery, being designed not so much to ‘discover’ the facts and to expedite trial preparation as to render it unnecessary to try an otherwise triable issue of fact or law.” (*St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 774.)

Plaintiff seeks to compel further responses to Request Nos. 1 and 3 through 9, arguing that Defendant's responses are evasive and incomplete, and contending Defendant's objections are without merit. Defendant contends that its responses are Code-compliant because it lacked sufficient knowledge to admit or deny the requests.

Request No. 1 asked Defendant to admit that China Mascot was responsible for collecting the Cargo in China and arranging for it to be loaded into a container covered by Sea Waybill No. COSU6373925161. Defendant objected on the basis of vagueness and irrelevance, and responded that after a reasonable inquiry, it lacked knowledge to confirm whether Plaintiff was the lawful owner of the Cargo, which the requests at issue all presuppose.

Defendant's response is evasive, as the request is not premised on Plaintiff's lawful ownership of the goods in question. As to relevance, "[i]n the context of discovery, evidence is 'relevant' if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating settlement." (*Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) It is sufficient if the information sought might reasonably lead to admissible evidence. (C.C.P. § 2017.010.) Defendant argues that the Complaint is premised upon Defendant's actions or omissions that occurred after the Cargo was delivered into Defendant's custody. (Complaint, ¶ 14.) However, Defendant's Cross-Complaint alleges that it has an ongoing business relationship with China Mascot (referred to as "China Customer"), and further alleged that China Mascot shipped the Cargo in dispute to Defendant. (Cross-Complaint, ¶ 7-8.) The Cross-Complaint alleges that China Mascot had not been paid for the fees and costs incurred for handling the Cargo. (Cross-Complaint, ¶ 12.) Accordingly, the request is relevant as to the claims set forth in the Cross-Complaint. **GRANT.**

Request No. 3 asked Defendant to admit that Defendant was responsible for taking delivery of the container and transporting the Cargo to its warehouse. Defendant objected, stating that the request was vague and irrelevant. Defendant further responded that it did not have any information on the identification of the owners of all the cargo covered by the Bill of Lading. As noted above, Defendant's argument as to the ownership of the Cargo is evasive. Defendant does not identify any ambiguity, as the Requests for Admission, Set One expressly identify the terms "subject goods" and "Plaintiff's cargo." Further, the request is relevant because Plaintiff's claims are based on Defendant's receipt and retention of the Cargo. **GRANT.**

Request No. 4 asked Defendant to admit that China Mascot was responsible for the China-side logistics whereas Defendant was responsible for the U.S.-side receipt and inland transportation of "Plaintiff's cargo." Defendant objected on grounds that the request was vague, compound, unintelligible, and irrelevant, and responded that it did not have sufficient information to identify the owner of the Cargo. As noted above, Defendant's response is evasive because the request is not premised on the lawful ownership of the Cargo. Further, the request is relevant to the extent that the Complaint and Cross-Complaint allege that China Mascot and Defendant were responsible for the Cargo's transportation from China to the United States, but remain unpaid for their services. **GRANT.**

Request No. 5 asked Defendant to admit that Mingfeng Xin was Defendant's CEO and CFO in 2024. Defendant objected on the basis of relevance. Plaintiff argues that the

identity of Defendant's CEO and CFO is relevant to corporate knowledge, control, agency, and decision-making. **GRANT.**

Request Nos. 6 through 9 asked Defendant to admit that Mingfeng Xin owned a 30% interest in China Mascot in December 2013; acquired an additional 15% ownership interest in China Mascot in January 2018 for a nominal consideration of RMB 1; held a 45% ownership interest in China Mascot from January 29, 2024 through September 20, 2024; then transferred all his equity interest in China Mascot to Minxia Wu on September 20, 2024. Defendant objected on the basis of relevance.

Plaintiff contends that the requests are relevant because "overlapping ownership, corporate roles, agency, coordination, and joint conduct between Defendant and China Mascot bear directly on Plaintiff's conversion, interference, and fraud claims." (Joint Separate Statement, Plaintiff's Position re: Request No. 6.) However, the Complaint contradicts Plaintiff's claim of relevance, as it states that "Defendant acted alone and/or in coordination with foreign affiliates and individuals, but only Defendant is named as a defendant in this action. Conduct of third parties is alleged solely as evidentiary background showing Defendant's intent, knowledge, and participation." (Complaint, ¶ 9.) Further, none of Plaintiff's causes of action mention anyone other than Defendant. Accordingly, China Mascot's ownership is irrelevant to support Plaintiff's claims, which are solely alleged against Defendant. **DENY.**

IV. Sanctions

Code of Civil Procedure § 2033.290(d) provides that the court shall impose a monetary sanction against any party or attorney who unsuccessfully makes or opposes a motion to compel further responses to requests for admissions unless it finds the party or attorney acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

Here, the Court denies the parties' requests for sanctions given the mixed results.

Summary

Grant the motion to compel further responses to Request Nos. 1 and 3-5. Order Defendant to serve verified further responses within 15 days. Deny the motion to compel further responses to Request Nos. 6-9. Deny the requests for sanctions.